

Chapter 6

The Blogger's Freedom of Expression and the Cyber Libel Law

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Intended Learning Outcomes

At the end of this chapter, the student is expected to:

- ☐ Defend his/her rights to freedom of expression as well as to make or design his/her own blogs;
- ☐ Recognize the limitation of his/her right to free expression;
- ☐ Discuss the tests in which a subsequent punishment may be allowed for a person who has abused his/her right to free expression;
- ☐ Be familiar with the cyber libel law and its elements;
- ☐ Memorize the elements of defamation;
- ☐ Argue or judge whether a particular exercise of free expression constitute libel and/or defamation; and
- ☐ Interprets a libelous statement.

Scope of the Freedom of Expression

“No law shall be passed abridging the freedom of speech, of expression, or of the press, or the right of the people peaceably to assemble and petition the Government for redress of grievances.” (Art. III, Sec 4, Constitution)

Freedom of Expression

Freedom of expression is a fundamental right protected under the Constitution of the Philippines.

It includes the right to:

- *Express opinions*
- *Share ideas and beliefs*
- *Criticize government and institutions*
- *Publish content online*

Note: This right is not absolute.

Bloggers as Digital Publishers

Blog – a type of website usually maintained by an individual with regular entries of commentary, descriptions of events, or other material such as graphics or video.

Bloggers as Digital Publishers

Bloggers:

- Create and publish online content
- Influence public opinion
- Act as citizen journalists
- Contribute to democratic discourse

They enjoy constitutional protection but are also accountable under the law.

What is Libel?

Art. 353. Definition of Libel. – A libel is a public and malicious imputation of a crime, vice, defect, real or imaginary, or any act, omission, condition, status, or circumstance tending to cause the dishonor, discredit, or contempt of a natural or juridical person, or to blacken the memory of one who is dead.

Art. 354. Requirement for publicity. – Every defamatory imputation is presumed to be malicious, even if it be true, if no good intention and justifiable motive for making it is shown.

What is Libel?

Art. 355. Libel means by writings or similar means – **A libel is committed by means of writing, printing, lithography, engraving, radio, phonograph, painting, theatrical exhibition, cinematographic exhibition, or any similar means,** shall be punished by prison correccional in its minimum and medium periods or a fine ranging from 200 to 6,000 pesos, or both, in addition to the civil action which may be brought by the offended party.

Reasons for Punishing Defamation

“A good name is to be chosen rather than great wealth...”
(*Proverbs 22:1 Study Bible*)

“It is better to be poor and walk in integrity than to be stupid and speak lies.” (*Proverbs 19:1 Study Bible*)

Elements of Defamation

1. There must be an **imputation** of a crime, or of a vice or defect, real or imaginary, or any act, omission, condition, status, or circumstance.
2. The imputation must be made **publicly**.
3. It must be **malicious**.

Elements of Defamation

4. The imputation must be **directed at a natural or juridical person, or one who is dead**. Here the identity of the offended party must be clearly identified.
5. The imputation must **tend to cause the dishonor, discredit, or contempt** of the person defamed.
6. It must be in writing (*for cyber libel; writing must be done through a computer system or any other similar means which may be devised in the future*).

Example 1:

Suppose you post this in your status message, will you be guilty of cyber libel? Assume you are a school mate of Myrna Garcia.

MGA FRIENDS, Si MYRNA GARCIA, yung magandang Engineering, eh TESBUN!!! Eh di ba wala naman BF yun. Akala mo, mahinhin, malandi pala!!!

Example 2:



Mga minamahal kong mga kabarangay, mag-ingat po kayo sa taong ito na nasa larawan. Siya po ay mapanganib at nagkukunwaring nagtitinda ng payong subalit siya po ay holdaper at magnanakaw. Ang pangalan po nya ay si Kordapio.

What is Cyber Libel?

Cyber libel is libel committed through electronic means under: Cybercrime Prevention Act of 2012

Examples:

- Blog posts
- Facebook posts
- Tweets
- Online news articles
- Comments sections

Difference of Cyber Libel and Libel

1. As to the manner of commission, ordinary libel is committed by *means of writing, printing, lithography, engraving, radio, phonograph, painting, theatrical exhibition, cinematographic exhibition,* or any similar means, while cyber libel is committed through a *computer system or any other similar means which may be devised in the future.*

Difference of Cyber Libel and Libel

2. As to the venue of filing the complaint, ordinary libel is filed with the *RTC of the province or city where the libelous article is printed and first published OR at the place where one of the offended parties actually reside at the time of the commission of the offense* (Art. 360, RPC). As regards to cyber libel, it is filed only with the *RTC at the place where one of the offended parties actually reside at the time of the commission of the offense.*

Difference of Cyber Libel and Libel

3. As to the penalty imposed, ordinary libel shall be punished by *prison correccional in its minimum and medium periods or a fine ranging from 200 to 6,000 pesos, or both*, in addition to the civil action which may be brought by the offended party. A cyber shall be punished by *one degree higher*.

Why is Cyber Libel More Serious?

Online content:

- **Spreads rapidly**
- **Is accessible worldwide**
- **Is difficult to erase**
- **Can permanently damage reputation**

Thus, the law imposes stricter consequences.

Conflict

Freedom of Expression

- ✓ Encourages transparency
- ✓ Promotes accountability
- ✓ Supports democracy

Cyber Libel Law

- ✓ Protects dignity and reputation
- ✓ Prevents malicious attacks
- ✓ Promotes responsible speech

Protected vs. Unprotected Speech

Protected Speech:

- Fair comment on public issues
- Criticism of public officials
- Opinion (clearly stated as opinion)
- Truthful reporting

Unprotected Speech:

- False accusations
- Malicious allegations
- Fabricated claims
- Personal attacks presented as fact

Responsible Blogging Principles

To avoid cyber libel:

- ✓ Verify information
- ✓ Use credible sources
- ✓ Distinguish fact from opinion
- ✓ Avoid malicious language
- ✓ Practice ethical digital behavior

Liking, Sharing and Commenting on Libelous Message in Cyber Space

Except for the original author of the assailed statement, the rest (*those who pressed Like, Comment and Share*) are essentially knee-jerk sentiments of readers who may think little or haphazardly of their response to the original posting.

Simply stated, those merely respond to the original libelous post cannot be held to be liable.

According to the Supreme Court, the cyber libel provision of RA 10175 punishes only the original author of the post.

Summary

- Freedom of expression is a constitutional right.
- It is not absolute.
- Cyber libel penalizes defamatory online content.
- Bloggers must balance free speech with accountability.
- Responsible digital citizenship is essential.